

– p. 8, l. 20), (c) to allege facts as to the basis for naming Plaintiffs or the Myers in their capacities as trustees of the respective family trusts, if they deem it necessary or appropriate (see Myers Opp. p. 13, ll. 18-20), and (d) to allege compliance with any pre-litigation alternative dispute resolution requirements that may apply under the CC&Rs and attach a certificate regarding same, if they deem it necessary or appropriate (see Myers Opp. p. 13, ll. 11-17).

Nothing in this ruling is a ruling on the sufficiency or the merits of the claims or allegations of the proposed FAC or the final version of the first amended and supplemental complaint that Plaintiffs file, or determines or limits any defenses parties may raise in response to any first amended and supplemental complaint Plaintiffs file, except as to the procedural ruling that Plaintiffs shall be allowed to amend, supplement and plead omitted cross-claims by filing an amended and supplemental first amended complaint as they request in their motion pursuant to Code of Civil Procedure sections 426.50, 464, 473(a), and 576. (*See generally Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 ["preferable practice" is allowing pleading amendment and allowing "the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings."].)

8. 9:00 AM CASE NUMBER: C23-00888
CASE NAME: ROSE WRONA VS. SAGE VETERINARY CENTERS, LP
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT**
FILED BY: ROSE MEQUITTA WRONA and JAMES MAGEE, ETC., ET AL.
TENTATIVE RULING:

Unopposed. Proposed Order will be signed by the Court.

9. 9:00 AM CASE NUMBER: C23-02820
CASE NAME: ILIANA REYES VS. FIRST AMERICA AUTOMOTIVE, INC., A DELAWARE CORPORATION
***HEARING ON MOTION IN RE: HEARING ON THE FINAL APPROVAL OF SETTLEMENT**
FILED BY: ILIANA REYES,, on behalf of herself and all others, etc.
TENTATIVE RULING:

Unopposed. Proposed Order will be signed by the Court.

10. 9:00 AM CASE NUMBER: C24-02496
CASE NAME: FEDERICO BOJORQUEZ VS. HERMINIA MARTINEZ
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: MARTINEZ, HERMINIA
TENTATIVE RULING:

Continued by the Court to June 17, 2026.

11. 9:00 AM CASE NUMBER: C24-02873
CASE NAME: JUDITH SEELYE VS. TAMPICO HEALTHCARE CENTER, LLC
***HEARING ON MOTION IN RE: TO ABATE ACTION**
FILED BY: TAMPICO HEALTHCARE CENTER, LLC
TENTATIVE RULING:

Motion withdrawn by Attorney Schrader.

12. 9:00 AM CASE NUMBER: C24-03111
CASE NAME: VICKI SOLLIS DAVIS VS. ANN CHAMBERS
***HEARING ON MOTION IN RE: INTERLOCUTORY JUDGMENT OF PARTITION BY SALE**
FILED BY: SOLLIS DAVIS, VICKI LYNN
TENTATIVE RULING:

Unopposed – granted.

13. 9:00 AM CASE NUMBER: C25-02746
CASE NAME: CARTER HALLOCK VS. WENDY JARDINE
HEARING IN RE: SPECIAL MOTION FOR DECLARATORY RELIEF
FILED BY: CARTER HALLOCK
TENTATIVE RULING:

Plaintiff Carter Chapin Hallock (“Plaintiff”) has filed the instant special motion for declaratory relief, which asks the Court to declare, pursuant to Code of Civil Procedure section 1060, that he is a 49% owner of CMOUTS LLC, based on an alleged written contract attached to the complaint as Attachment A.

Code of Civil Procedure section 1060, provides that:

Any person interested under a written instrument . . . or under a contract, or who desires a declaration of his or her rights or duties with respect to another. . . may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties. . . including a determination of any question of construction or validity arising under the instrument or contract.

As the statutory authority provides, a claim for declaratory relief must be asserted in “an original action or cross-complaint,” not as a standalone motion. (See Code of Civ. Proc., § 1060.) Here, Plaintiff’s operative complaint does not contain a claim for declaratory relief, and the instant “special motion” is not a recognized procedure for asserting declaratory relief.

Plaintiff’s special motion for declaratory relief is DENIED.